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Case Number: 25STCV01499 Hearing Date: September 24, 2026 Dept: 509

Jayesh Patel v. Jayesh Kumar, et al.

MOTION TO SET ASIDE DEFAULT AND VACATE DEFAULT JUDGMENT

MOVING PARTY: Defendant Jayesh Kumar

RESPONDING PARTY(S): Plaintiff Jayesh Patel

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Jayesh Patel (Plaintiff) alleges he invested over \$4 million dollars with the defendants to use for construction projects. Plaintiff alleges the defendants, including Jayesh Kumar, have failed or refused to return any money invested. This action followed.

On April 22, 2025, the court clerk entered Jayesh Kumar's default. (See 04/22/2025 Entry of Default.)

On April 23, 2025, Jayesh Kumar filed a demurrer.

On July 9, 2025, Jayesh Kumar's demurrer came to hearing where he was present via LACC. (See 7/9/25 Minute Order.) The Court took the demurrer off calendar and informed Jayesh Kumar directly that he was in default and he would need to file a motion to set aside the default for his demurrer to be heard. (Ibid, ["Defendant will need to file a motion to set aside the default if no stipulation is reached."].) This was reiterated in the notice of ruling served on Jayesh Kumar two days later. (See 7/11/25 Notice of Ruling, ["To proceed, Defendant must file a noticed motion to set aside the default and demonstrate a proper ground for relief."]) Despite these clear instructions, no motion was filed.

On October 29, 2025, Jayesh Kumar appeared, via LACC, however, he was not present when case was called. (10/29/25 Minute Order.)

On January 20, 2026, Jayesh Kumar appeared, via LACC. In the hearing, the issue of Jayesh Kumar's appearance in this case was addressed. (1/20/26 Minute Order.)

Finally, on April 24, 2026, the court entered a default judgment against Jayesh Kumar in the amount of \$7,193,158.96.

Jayesh Kumar now moves for relief from default and the default judgment. Plaintiff opposed. [FN 1]

On August 21, 2026, Jayesh Kumar continued this motion and on September 17, 2026, filed a reply. In its discretion, the Court considers this untimely reply.

TENTATIVE RULING

Jayesh Kumar's Motion to Set Aside Default and Vacate Default Judgment is DENIED.

Plaintiff is ordered to give notice.

DISCUSSION:

Motion to Set Aside Default and Vacate Default Judgment

I. Legal Standard

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., §473(b).)

The mandatory relief provision of section 473(b) does not apply to self-represented parties because the statute requires an attorney's sworn affidavit attesting to mistake, inadvertence, surprise, or neglect, and by its terms distinguishes between the attorney and the client. (McClain v. Kissler (2019) 39 Cal.App.5th 399, 429.) When a party is self-represented, they are "one and the same" as their own attorney, so the mandatory relief provision is unavailable. (Ibid.) This means pro per defendants can only seek discretionary relief under section 473(b), which requires them to demonstrate excusable neglect and is reviewed under an abuse of discretion standard rather than the mandatory standard that would require the court to grant relief. (Ibid.)

Under discretionary relief, pro-per defendants face a higher burden because they must show their neglect was excusable, whereas represented parties seeking mandatory relief can obtain relief even for inexcusable attorney neglect (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 303.) The discretionary provision allows courts to grant relief based on mistake, inadvertence, surprise, or excusable neglect, but the determination rests within the trial court's sound discretion and will not be disturbed on appeal absent a clear showing of abuse of discretion. (McClain, supra, 39 Cal.App.5th at p. 429.)

Application for relief under Code of Civil Procedure, section 473(b) must be made within six months of when the judgment, dismissal, order, or proceeding was taken.

II. Analysis

Jayesh Kumar moves to vacate the default judgment entered on April 24, 2026, and set aside the default entered on April 22, 2025. (Not. of Mot.) Jayesh Kumar "requests that the default and default judgment be set aside on the grounds that he did not receive notice and on the grounds of surprise and mistake." (Mot. at p. 3:13-15.)

As an initial matter, this Court is mindful that Jayesh Kumar is in pro per. However, “pro. per. litigants are held to the same standards as attorneys.” (Kobayashi v. Superior Ct. (2009) 175 Cal.App.4th 536, 543.)

A. Jayesh Kumar's Motion is Untimely

First, Jayesh Kumar's motion is untimely.

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

(Code Civ. Proc., §473, subd. (b), emphasis added.)

Jayesh Kumar's motion is untimely, as it was filed more than six months after entry of default on April 22, 2025. Instead, motion was filed on July 2, 2026, more than fourteen months after his default was entered. This Court understands that the motion was filed within 6 months from the entry of the default judgment. Be that as it may, this motion is untimely and relief cannot be granted as to the entry of the default.

B. The Motion Would Likewise Be Denied on the Merits

As to the default judgment, and even if the Court were to consider this instant motion as timely as to the entry of default, the motion would be denied on the merits for numerous reasons..

First, not only does the record reflect Jayesh Kumar was properly served on March 10, 2025, but Jayesh Kumar was given notice, personally by this Court, no less than three times that he had defaulted in this action during his personal appearances in this action. There is no doubt that Jayesh Kumar was adequately informed of this action and his defaulted status.

Second, Jayesh Kumar was properly served with the default judgment. Jayesh Kumar was served by mail at 13940 Moorpark Street, #410, Sherman Oaks, CA 91423. (Lew Decl. ¶8.) This is the same address where he was served and is currently listed on the first page of this instant motion. Notably, Jayesh Kumar refused to consent to electronic service just days before the request for default judgment was filed, thereby necessitating service on his address. (See 1/20/26 Minute Order, [“Appearing parties do not consent to email notices.”])

Third, the issue of the one judgment rule has been mooted by the recent dismissal of all other defendants. (See 7/20/26 Requests for Dismissals.)

And finally, a judgment or order is “void” only “when the court entering that judgment lacked jurisdiction in a fundamental sense due to the entire absence of power to hear or determine the case resulting from the absence of authority over the subject matter or the parties.” (People v. N. River Ins. Co. (2020) 48 Cal.App.5th 226, 233 [citations omitted].) However, Jayesh Kumar does not challenge this Court's authority over the subject matter or the parties.

In the end, “a default admits the material allegations of the complaint.” (Jackson v. Bank of America (1986) 188 Cal.App.3d 375, 387 [citing Ellis v. Rademacher (1899) 125 Cal. 556, 557].) Jayesh Kumar's remaining argument arises out of a challenge to the arguments presented in Plaintiff's complaint. However, Jayesh Kumar had ample opportunity to fully litigate

this action and chose not to do so. He cannot collaterally attack the allegations at this time.

Accordingly, Defendant's Motion to Set Aside Default and Vacate Default Judgment is DENIED.

IT IS SO ORDERED.

Dated: September 24, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiff filed three supplemental oppositions after opposing Jayesh Kumar's motion. These were filed without leave of Court and the Court declines to consider these improper oppositions.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.